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Lawmakers call to strip financial aid from violent protesters

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California Republican legislative leaders on Thursday called for students who commit violent acts during campus protests to have their state financial aid revoked, and for university administrations that allow it to happen to be financially penalized.

Assembly Speaker Robert Rivas, D-Hollister, and Senate President Pro Tem Mike McGuire, D-Healdsburg, did not provide a response to the Republican proposal. The proposal faces long odds in a Legislature controlled by a Democratic super-majority.

The Republicans' remarks came as students across California, and across the country, have protested Israel's war with Hamas in Gaza that has killed tens of thousands of civilians. According to the Associated Press, at least 2,000 people have been arrested at pro-Palestinian protests. That includes dozens of students arrested at Cal Poly Humboldt and more than 200 arrested at UCLA, according to the Los Angeles Times.

"We should not be giving Cal Grant money, state money, to students who are trampling on other people's rights. And these campus administrators, like at (Cal Poly Humboldt) where classes were closed down, where all students' rights were violated by this, they should lose funding," said Assembly Republican Leader James Gallagher, R-Yuba City, in a Thursday morning press conference at the Capitol

Cal Grant is the name of the state student financial aid program, overseen by the California Student Aid Commission.

Senate Minority Leader Brian Jones, R-Santee, said that the First Amendment guarantees the right to protest the government, but it "does not guarantee you the right to impede other citizens' First Amendment rights."

"It does not give you the right to stop students from going to class. It doesn't give you the right to put up barricades and commit violent acts. It doesn't give you the right to paint a public street like we have out here in front of the Capitol today, where they closed down a street yesterday without a permit, without permission, and the police stood by and just watched it happen," Jones said.

Asked how the state would actually implement a punishment such as stripping of Cal Grants, Gallagher said that after due process has been provided and a student has been found guilty of committing criminal acts, then they should have their state funding pulled.

As for a penalty to campus administrators, Jones suggested that universities could be sanctioned for a dollar amount equal to the amount of property damage he said they allowed to take place on their campus.

Gallagher and Jones said that they have not yet spoken with the chairs of their respective legislative houses' budget committees about their proposal.

Both Republican lawmakers also said that some campus administrators should be fired for what they have allowed to happen on their campuses.

"We've got a whole lot of people at these universities who are drawing six-figure salaries, and stood by and did nothing while all this happened," Gallagher said.

He added that "some people need to be fired" for what happened.

Republicans weren't the only lawmakers critical of campus leadership.

On Wednesday, California Legislative Jewish Caucus Co-Chairs Assemblyman Jesse Gabriel, D-Encino, and Sen. Scott Wiener, D-San Francisco, released a statement saying, "It is clear that UCLA leadership has totally failed Jewish students, the protesters, and the broader campus community."

The caucus co-chairs vowed to work with state and university officials "to ensure full accountability."

Wiener and Gabriel also serve as chair of their respective budget committees.

On Tuesday night and early Wednesday morning, hundreds of pro-Israel counter-protesters attacked a pro-Palestine encampment at UCLA while police stood by for hours.

On Thursday, Assemblyman Rick Chavez Zbur, D-Hollywood, whose district includes UCLA, issued a statement calling on the U.S. Department of Education's Office for Civil Rights to investigate that university for potential civil rights violations related to the protests.

"I am alarmed and extraordinarily disappointed that the university allowed the situation to deteriorate with seemingly little regard for Jewish and Israeli-American students' personal safety and their civil rights as enrolled students," Zbur said in a statement.

Zbur went on to say that UCLA also has failed to protect the students in the encampment from attack.

At his Thursday press conference, Gallagher also used the occasion to criticize California Gov. Gavin Newsom, a favorite political target of his, this time for what the Republican lawmaker said was a failure to act in this moment.

"It's unacceptable that our governor has largely said very little about this and taken very little action to quell what has been going on on our campuses," he said.

On Wednesday, Newsom's office announced that the Governor's Office of Emergency Services has been coordinating with law enforcement mutual aid requests related to the campus protests. They also announced that Newsom has spoken with University of California President Michael Drake about his efforts to ensure student safety.

Newsom also has released a statement in response to campus violence, saying, "The law is clear: The right to free speech does not extend to inciting violence, vandalism, or lawlessness on campus. Those who engage in illegal behavior must be held accountable for their actions - including through criminal prosecution, suspension, or expulsion."

Assemblyman Alex Lee, D-San Jose, who was an early supporter of the push for a ceasefire in the war, said his Democratic colleagues have different views on the protests and the conflict. But no one "wants to see people get beat up by each other," he said.

"They, I think, have a lot of reticence to see vandalism and broken things," Lee said. "But I think, all in all, people really do respect the freedom to protest. And I think people are really appalled when you see counter-protesters, kind of really attacking people, or the sending of 100 armed riot police to come take down tents."

Lee said students deserve to have their opinion heard. He said it's "hypocritical" for Republicans to slam student protesters when they have strongly defended conservative figures who have drawn criticism and demonstrations during their campus appearances.

"If you really believe in freedom of expression, you say, 'Well, this guy on the far right, I hate it, but here he goes. This person on the left, alright, I hate it, but like we'll let it go,'" Lee said. "But this picking and choosing is not

academic freedom. It's not freedom of speech."

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